

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2025CUMC038966: BELL CANYON ASSOCIATION, A CALIFORNIA NON-PROFIT
CORPORATION vs ERIC WOLF**

06/30/2026 in Department 42

**Motion to Compel RESPONSES TO REQUESTS FOR PRODUCTION, TO COMPEL
COMPLIANCE, AND REQUEST FOR SANCTIONS OF 6,412.50 AGAINST CROSS-
COMPLAINANT ERIC WOLF AND JEFF MANN, ESQ., JOINTLY AND SEVERALLY**

Motions: 1. Cross-Defendant Bell Canyon Association’s Motion to Compel Responses to Special Interrogatories and Request for Sanctions (*opposed*)
2. Cross-Defendant Bell Canyon Association’s Motion to Compel Responses to Requests for Production and Request for Sanctions (*opposed*)

Tentative Ruling:

The Court intends to find Cross-Defendant Bell Canyon Association’s Motions to Compel Responses to Special Interrogatories and Requests for Production MOOTED by Cross-Complaint Wolf’s May 29, 2026 service of responses. Sanctions are denied.

Discussion:

The motions are **MOOT** because it is undisputed that Eric Wolf served his initial discovery responses on Bell Canyon Association on May 29, 2026, after the motions were filed.

Accordingly, the relief requested in the motions can no longer be granted. Moreover, the discovery responses themselves have not been submitted to the Court for review; instead, the parties merely describe their contents.

As for the issue of waiver of objections and/or relief from waiver, such issues must first be addressed through the meet-and-confer process. If the parties are unable to resolve those issues informally, they may be presented to the Court through an appropriate noticed motion.¹ The Court strongly encourages counsel to resolve these relatively straightforward discovery issues without further judicial intervention.

With respect to sanctions, Bell Canyon Association is correct that the Court retains discretion to award sanctions notwithstanding the subsequent service of discovery responses. (See *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 408-412; Cal. Rules of Court, rule 3.1030(a).)

The Court declines to award sanctions. The record reflects that these motions were unnecessary and could have been avoided. Bell Canyon Association was aware that Eric Wolf had expressly represented that discovery responses would be served imminently. Despite this knowledge, Bell Canyon Association nevertheless elected to proceed with motions that it knew would likely become moot upon service of those responses. No imminent discovery deadline existed, trial remains approximately seventeen months away, and no prejudice from the brief delay has been

¹ A noticed motion is required for relief from waiver under Code Civ. Proc., §§ 2031.300, subd. (a), 2030.290, subd. (a). (See Weil & Brown, Cal. Practice Guide: Civ. Proc. Before Trial (The Rutter Guide 2025) ¶¶ 8:1033, 8:1465.)

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demonstrated. Under these circumstances, the Court finds that the motions served little practical purpose beyond seeking approximately \$10,000 in monetary sanctions. The Court will not encourage unnecessary motion practice or reward litigation tactics that unnecessarily increase the cost and burden of discovery. Accordingly, each request for sanctions is **DENIED**.